Fort Bend County District Court

Cause No. 2023-CV-0034

Michael Gilbert, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Michael Gilbert

Date:	March 8, 2024
Location:	Offices of Cooper & Quinn LLP
Examining attorney:	Stephanie Williams, Ashford & Lyle LLP
Defending attorney:	Matthew Day, Cooper & Quinn LLP

Q: Please state your full name for the record.

A: I'd rather not put my full name in a transcript, but my attorney can confirm the caption. I'm the plaintiff in this matter.

Q: Fair enough. Let's talk about the collision. Where were you driving when it happened?

A: I was heading down a two-lane road in Houston, in the right-hand lane, going to pick up groceries.

Q: What happened next?

A: A car came over into my lane from the opposite direction. I tried to swerve, but there wasn't much room, and we hit almost head-on. It wasn't a violent crash, but the impact was enough to jolt me forward and then back.

Q: How fast were you traveling?

A: Not fast. Maybe twenty-five or so. Traffic was light and I was being careful.

Q: Did you feel anything right away?

A: Not immediately. I felt shaken, and my neck was stiff within a few minutes. By that evening my lower back had started to ache too.

Q: Did you seek medical care?

A: Yes. A friend drove me to an urgent care clinic that same night. They examined me, took some X-rays, and diagnosed a neck and back strain. They told me to rest and gave me a prescription for muscle relaxers.

Q: Have you received any further treatment since then?

A: I went to physical therapy about twice a week for several weeks. The therapist worked on my neck and lower back, with stretches and heat treatment. I also saw my primary care doctor for follow-up visits.

Q: How has your daily life been affected?

A: It's been harder than I expected. I used to garden on weekends and I've mostly stopped. Sitting at my desk at work for long stretches makes my neck tighten up, so I get up often. Lifting my grandchildren is painful, and I've had to ask my husband to carry the groceries.

Q: Are you still experiencing symptoms today?

A: Yes, though they're better than they were. Mornings are the worst. I have some stiffness and occasional aching, and I still take over-the-counter pain relievers when it flares up.

Q: Before this accident, did you have any problems with your neck or back?

A: Nothing serious. I had some occasional soreness after a long day, but nothing that stopped me from doing what I needed to do.